Australian Government

Department of Home Affairs

Appointment of a registered migration agent, legal practitioner or exempt person

Form

956

Who should use this form?

This form can **only** be used by:

- a registered migration agent
- a legal practitioner; or
- an exempt person.

This form should be used to notify the Department of Home Affairs (the Department) that:

- you have **been appointed** by a client (eg. a visa applicant) to provide immigration assistance under the *Migration Act 1958* and, if applicable, to receive documents on their behalf; or
- your **appointment has ended** (You may notify the Department of this in writing if you prefer).

A separate form 956 *Appointment of a registered migration agent, legal practitioner or exempt person* must be completed for each matter.

Where your appointment has ended, this form can also be used to notify the Department of the withdrawal of your appointment as an authorised recipient. Your client is required to complete the declaration on Page 6 to confirm that the withdrawal is being done with the client's authority. (Your client may also notify the Department of the withdrawal of your appointment as an authorised recipient in writing if they prefer or by completing form 956A *Appointment or withdrawal of an authorised recipient*).

Dependent applicants

All persons listed on this form will be considered to have appointed the same person to provide immigration assistance and as authorised recipient where indicated.

Do not use this form if you have only been appointed as a person who is authorised to receive documents, on another person's behalf, that the Department would otherwise give to them.

In this case, please use form 956A *Appointment or withdrawal of an authorised recipient*.

What is immigration assistance?

A person gives immigration assistance if he or she uses, or claims to use, his or her knowledge or experience in migration procedure to assist a person with matters related under the *Migration Act 1958*.

The most common times assistance is provided is during visa application processes, visa cancellation processes or sponsorship processes (including monitoring or sanctions).

Note: Immigration assistance does not include simply filling in an application form, translating or interpreting or passing on information about an application without comment or explanation.

Registered migration agents

A registered migration agent is a person who is registered with the Office of the Migration Agents Registration Authority (OMARA) to provide immigration assistance.

If operating in Australia, migration agents must be registered with the OMARA.

Information on registered migration agents, including how to find one, is available on the OMARA website **www.mara.gov.au**

Legal practitioners

A legal practitioner is a lawyer who holds an Australian legal practising certificate (whether restricted or unrestricted) granted under a law of an Australian state or territory.

Legal practitioners can provide immigration assistance in connection with legal practice.

Information on legal practitioners, including how to find one, is available on the Law Council of Australia website.

Information on legal practitioners can also be sought from the relevant state or territory legal professional bodies.

Exempt persons

The following people do not have to be a registered migration agent or legal practitioner in order to provide immigration assistance:

- a close family member (spouse, child, adopted child, parent, brother or sister of a visa applicant);
- a sponsor or nominator for a visa applicant;
- a member of parliament or their staff;
- an official appointed or engaged under the *Public Service Act 1999* or a member of the public service of a state or territory giving immigration assistance as part of their duties;
- a member of a diplomatic mission, consular post or international organisation.

As an exempt person **you must not charge a fee** for your assistance. In Australia, if you do charge a fee you are committing an offence and penalties of up to 10 years jail can apply.

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Authorised recipient

You can be appointed as an authorised recipient to receive documents on behalf of another person relating to their visa matter, but you must not provide immigration assistance unless you are also a registered migration agent, legal practitioner or exempt person.

When an authorised recipient is appointed, the Department will:

- send all written communication about the visa matter to the authorised recipient
- deem written communication to be received by the person for whom the authorised recipient has been appointed.

You should be aware that the documents sent to your authorised recipient might include sensitive information about matters such as your health and character.

Ending authorised recipient appointment

In many cases the person who has been appointed to provide immigration assistance has also been appointed as the client's authorised recipient. **Parts B and C** of this form can be used to advise the Department that the client has withdrawn the appointment of an authorised recipient.

Alternatively the client can notify the Department in writing of the withdrawal of an authorised recipient, or complete form 956A *Appointment or withdrawal of an authorised recipient*.

Consent to communicate electronically

The Department may use a range of means to communicate with you. However, electronic means such as email will only be used if you indicate your agreement to receiving communication in this way.

Electronic communications, unless adequately encrypted, are not secure and may be viewed by others or interfered with. If you agree to the Department communicating with you by electronic means, the details you provide will only be used by the Department for the purpose for which you have provided them, unless there is a legal obligation or necessity to use them for another purpose, or you have consented to use for another purpose. They will not be added to any mailing list.

The Australian Government accepts no responsibility for the security or integrity of any information sent to the Department over the internet or by other electronic means.

Important information about privacy

The *Privacy Act 1988* contains 13 Australian Privacy Principles which regulate the way that the Department collects and handles personal information. Information about how the Department collects, uses and discloses personal information for its key functions can be found in form 1442i *Privacy notice*. More information about the Department's general information handling practices (including form 1442i) can be found in the Department's Privacy policy at **https://www.homeaffairs.gov.au/access-and-accountability/our-commitments/privacy**

Home page	**www.homeaffairs.gov.au**
General enquiry line	Telephone **131 881** during business hours in Australia to speak to an operator (recorded information available outside these hours). If you are outside Australia, please contact your nearest Australian mission.

Please keep these information pages for your reference

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Department of Home Affairs

Appointment of a registered migration agent, legal practitioner or exempt person

Form **956**

Please open this form using Adobe Acrobat Reader.
Either type (in English) in the fields provided or print this form and complete it (in English) using a pen and BLOCK LETTERS.

Tick where applicable ✓

1 Are you notifying the Department that you have been appointed to provide immigration assistance, or that your appointment has ended?

New appointment ☐ ▶ **Complete Part A and Part C**
You do not need to complete Part B

Appointment has ended ☐ ▶ **Complete Part B and Part C**
You do not need to complete Part A.

Part A – New appointment
Registered migration agent/legal practitioner/exempt person's details

2 Registered migration agent/legal practitioner/exempt person's details

Title: Mr ☐ Mrs ☐ Miss ☐ Ms ☐ Other

Family name

Given names

Exempt person's date of birth DAY MONTH YEAR

3 Organisation name *(if applicable)*

4 Business or residential address

POSTCODE

5 Address for correspondence
(If the same as business or residential address, write 'AS ABOVE')

POSTCODE

6 Telephone numbers

	COUNTRY CODE	AREA CODE	NUMBER
Office hours	( )	( )	
Mobile/cell			

7 Do you agree to the Department communicating with you by email or other electronic means?

No ☐

Yes ☐ ▶ Give details

Email address

8 In what capacity are you providing assistance?

Registered migration agent ☐
Legal practitioner ☐ ▶ **Go to Question 9**

Exempt person ☐ ▶ **Go to Question 11**

9 Migration Agent Registration Number (MARN) : 7 DIGITS

Legal Practitioner Number (LPN) 5 5 7 DIGITS

10 Is there another registered migration agent or legal practitioner from your organisation who the Department may discuss this case with if you are unavailable?

No ☐ ▶ **Go to Question 12**

Yes ☐ ▶ Give details of the other registered migration agent/legal practitioner

Family name

Given names

Telephone numbers

	COUNTRY CODE	AREA CODE	NUMBER
Office hours	( )	( )	
Mobile/cell			

Migration Agent Registration Number (MARN) : 7 DIGITS

Legal Practitioner Number (LPN) 5 5 7 DIGITS

▶ **Go to Question 12**

11 Reason you are an exempt person

Close family member (spouse, child, parent, brother or sister) ☐

Sponsor ☐

Nominator ☐

Member of a diplomatic mission, consular post or international organisation ☐

Member of parliament or their staff ☐

Official appointed or engaged under the *Public Service Act 1999* or member of state/territory public services giving immigration assistance as part of their duties ☐

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Client's details

12 The person receiving immigration assistance (ie. the client) is a: *(tick one only)*

- visa applicant ☐
- sponsor or sponsor applicant ☐
- nominator or nominator applicant ☐
- proposer or proposer applicant ☐
- visa holder whose visa is being considered for cancellation or has been cancelled ☐
- person requesting ministerial intervention ☐

13 **Client 1**

Full name *(If the client is an organisation, provide the name of the contact person)*

Family name

Given names

Date of birth DAY MONTH YEAR

Organisation name *(if applicable)*

Business or residential address

POSTCODE

Telephone numbers

Office hours (COUNTRY CODE) (AREA CODE NUMBER)

Mobile/cell

Department of Home Affairs Client ID number *(if known)*

14 Names of **other clients** you are providing immigration assistance to in relation to the same matter (eg. dependant applicants)

1. Family name
   Given names
2. Family name
   Given names
3. Family name
   Given names
4. Family name
   Given names
5. Family name
   Given names

Type of assistance

15 Are you providing assistance with an application process, a cancellation process or specific matter? *(tick one only)*

☐ **Application** process

Type of application

Date lodged DAY MONTH YEAR

Not yet lodged ☐

☐ **Cancellation** process

Subclass of visa

Date visa granted DAY MONTH YEAR

☐ **Specific matter** – give details (eg. sponsorship monitoring and sanction activity by the Department, or for only one stage of a two stage visa, ministerial intervention)

16 Provide **at least one** of the following numbers *(if known)*

Department of Home Affairs Request ID number (RID)

Department of Home Affairs Transaction Reference Number (TRN)

Authorised recipient

17 Have you been authorised to receive written communication on behalf of your client(s) in relation to the matter indicated in Question 15?

No ☐
Yes ☐ ▶ **Go to Part C**

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Part B – Ending appointment

18 **Registered migration agent/legal practitioner/exempt person's details**

Family name

Given names

Organisation name *(if applicable)*

Telephone numbers

	COUNTRY CODE	AREA CODE	NUMBER
Office hours	( )	( )	
Mobile/cell			

If applicable:

		7 DIGITS
Migration Agent Registration Number (MARN)	:	: : : :
Legal Practitioner Number (LPN)	5 5	: : : :

19 Was the person named at Question 18 also appointed as the client's authorised recipient?

No ☐

Yes ☐ ▶ Is the client ending their appointment as authorised recipient?

No ☐

Yes ☐

20 **Client's details**

Full name *(If the client is an organisation, provide the name of the contact person)*

Family name

Given names

Date of birth (DAY MONTH YEAR)

Organisation name *(if applicable)*

Business or residential address

POSTCODE

Telephone numbers

	COUNTRY CODE	AREA CODE	NUMBER
Office hours	( )	( )	
Mobile/cell			

21 Does the client agree to the Department communicating with them by email or other electronic means?

No ☐

Yes ☐ ▶ Give details

Email address

22 Provide **at least one** of the following numbers

Department of Home Affairs Request ID number (RID)

Department of Home Affairs Transaction Reference Number (TRN)

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Part C – Declarations

Declaration by registered migration agent/legal practitioner/exempt person

23 *Tick all that apply*

☐ **Appointment of registered migration agent / legal practitioner / exempt person** – I declare that I have been appointed by the client named in Part A of this form as a registered migration agent/legal practitioner/exempt person and that I will act on the client's behalf as permitted by law.

☐ **Appointment of authorised recipient** – I understand that I have been appointed by the persons named in Part A of this form to be their authorised recipient; and as the authorised recipient, all documents that would otherwise be sent to the persons named in Part A will be sent to me, including by electronic means as indicated in Question 7 (if applicable).

☐ **Ending appointment of registered migration agent / legal practitioner / exempt person** – I declare that I am no longer acting on behalf of the client named in Part B and I have advised the client accordingly.

☐ **Withdrawal of authorised recipient appointment** – I understand that I am no longer acting as authorised recipient in this matter.

Signature of registered migration agent/legal practitioner/ exempt person

✍

DAY MONTH YEAR

Date

Declaration by client

24 *Tick all that apply*

☐ **Appointment of registered migration agent / legal practitioner / exempt person** – I declare that I have appointed the registered migration agent/legal practitioner/exempt person named in Part A of this form to provide assistance with matters as indicated on this form.

☐ **Appointment of authorised recipient** – I declare that I have appointed the person named at Question 2 of this form to receive all documents relating to the matter indicated at Question 15 on my behalf.

☐ **Ending appointment** – I declare that the registered migration agent/legal practitioner/exempt person named in Part B is no longer acting on my behalf.

☐ **Withdrawal of authorised recipient appointment** – I declare that the registered migration agent/legal practitioner/exempt person listed at Question 18 on this form is no longer authorised to receive documents on my behalf.

I understand that future correspondence from the Department will be sent to the address that I have provided at Question 20.

I will inform the Department of any changes to my address for correspondence.

Signature of client

✍

DAY MONTH YEAR

Date

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